

HOUSE No. 2373

The Commonwealth of Massachusetts

PRESENTED BY:

Donald R. Berthiaume, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to medical records requests.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>1/17/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>2/17/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>6/10/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>6/10/2025</i>

HOUSE No. 2373

By Representative Berthiaume of Spencer, a petition (accompanied by bill, House, No. 2373) of Donald R. Berthiaume, Jr. and Paul McMurtry relative to medical records requests. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to medical records requests.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 118I of the General Laws, as so appearing in the 2022 Official Edition, is hereby
2 amended by adding the following new section:-

3 Section 17. (a) Upon request, a provider shall supply to a patient or a patient's authorized
4 representative within 15 business days of receiving a written request for medical records
5 complete and current information possessed by that provider concerning any diagnosis,
6 treatment, and prognosis of the patient in terms and language the patient can reasonably be
7 expected to understand.

8 (b) Except as provided in section (a), upon a patient's written request, a provider, at a
9 reasonable cost to the patient, shall promptly furnish to the patient or the patient's authorized
10 representative within 15 business days of receiving a written request for medical records:

11 (1) copies of the patient's health record, including but not limited to laboratory reports, x-
12 rays, prescriptions, and other technical information used in assessing the patient's health
13 conditions; or

14 (2) the pertinent portion of the record relating to a condition specified by the patient.

15 With the consent of the patient, the provider may instead furnish only a summary of the record.

16 The provider may exclude from the health record written speculations about the patient's health
17 condition, except that all information necessary for the patient's informed consent must be
18 provided.